character. He must be actually and actively engaged in the public practice of accounting and at least half of his time must be spent in professional accounting work.

Certified public accountants are sometimes employed by accounting firms as office managers or secretaries. Their functions in such capacities are clerical or administrative, and professional work as a certified public accountant is not their primary duty. To the extent that non-professional activities predominate, such certified public accountants are not exempt from salary stabilization.

Certified public accountants may be employed in a dual capacity, such as being associated with a firm of certified public accountants and acting as officer or controller of a business corporation at the same time. In such instances, the salary received for services as such corporate employee remains subject to salary stabilization. To be exempt, a certified public accountant must be employed and paid by a certified public accountant or firm of certified public accountants engaged in the practice of his or their profession; certified public accountants in the employ of any other employer are not exempted by the statute.

3. *A certified public accountant or firm of certified public accountants engaged in the practice of his or their profession.* For the statutory exemption to apply, the employing certified public accountant or certified public accountants must be self-employed and must practice either in their own name or as partners or members of a firm.

The employing certified public accountant or firm of certified public accountants must be engaged in the professional public practice of accounting, actually and actively, and on a fee basis, and not in non-professional work, such as the management of publications serving the accounting profession or of professional associations. The certified public accountant himself, not a client of the certified public accountant, must be the employer.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Issued by the Office of Salary Stabilization, July 23, 1952.

JOSEPH D. COOPER,
Executive Director.

[F. R. Doc. 52-8358; Filed, July 28, 1952; 10:10 a. m.]

Subchapter B—Wage Stabilization Board

ORDER ADOPTING PRIOR WAGE REGULATIONS

Sec.
1. Purpose.
2. Legal basis and authority.
3. Adoption of prior wage regulations.
4. Continuation in effect of certain other actions.
5. Affect on other orders.
6. Effective date.

SECTION 1. *Purpose.* (a) The purpose of this order is to promulgate regulations governing the payment of wages, salaries, and other compensation for persons under the jurisdiction of the Wage Stabilization Board after the 29th day of July 1952, in view of the provisions of section 403 (b) of the Defense Production Act, as amended (section 112, Pub. Law 429, 82d Cong.).

SEC. 2. *Legal basis and authority.* (a) This order is promulgated under the authority vested in the Economic Stabilization Administrator by the Defense Production Act of 1950, as amended (Pub. Law 774, 81st Cong., Pub. Laws 96 and 429, 82d Cong.), and Executive Order 10161, as amended.

SEC. 3. *Adoption of prior wage regulations.* (a) The General Wage Stabilization Regulation, the General Wage Procedural Regulation, all General Wage Regulations, and all Resolutions of the Wage Stabilization Board heretofore published in the FEDERAL REGISTER, as well as all amendments or revisions thereof, existing on the 29th day of July 1952, are hereby adopted and promulgated as the General Wage Regulations of the Economic Stabilization Administrator until his further order, except for the following which are hereby revoked:

(b) Enumeration of prior wage regulations revoked: (1) Subsections (b), (c) and (d) of section 1, and also sections 2, 3, 4, and 5 of General Wage Regulation 11. (Agricultural Labor)

(2) Resolution 79 (Disputes)

(3) Resolution 84 (Disputes)

SEC. 4. *Continuation in effect of certain other actions.* (a) All interpretations of General Wage Regulations, resolutions, other than those included in section 3 (a), rules, decisions, rulings, directives and other actions taken by the Wage Stabilization Board which existed under authority of Executive Order No. 10161, as amended, and Executive Order No. 10233, implementing its General Wage Stabilization Regulation, General Wage Regulations and Resolutions, shall remain in effect, except as they are inconsistent herewith or with the Defense Production Act of 1950, as amended, or are hereafter amended, revoked or terminated under proper authority.

SEC. 5. *Effect on other orders.* (a) Nothing contained herein shall be construed to limit the functions of the Wage Stabilization Board described in General Order No. 16.[1]

SEC. 6. *Effective date.* (a) This order becomes immediately effective at the close of the 29th day of July 1952, commencing with the 30th day of July 1952.

ROGER L. PUTNAM,
Economic Stabilization Administrator.

[F. R. Doc. 52-8375; Filed, July 28, 1952; 12:22 p. m.]

[1] See Economic Stabilization Administration, Office of the Administrator, Gen. Order 16, in Notices section, *infra*.

Chapter VI—National Production Authority, Department of Commerce

[CMP Regulation 1, Direction 13—Revocation]

CMP REG. 1—BASIC RULES OF THE CONTROLLED MATERIALS PLAN

DIR. 13—SPECIAL PREFERENCE STATUS OF CERTAIN AUTHORIZED CONTROLLED MATERIAL ORDERS

REVOCATION

Direction 13 (17 F. R. 5225) to CMP Regulation No. 1 is hereby revoked. This revocation does not relieve any person of any obligation or liability incurred under Direction 13 to CMP Regulation No. 1, nor deprive any person of any rights received or accrued under said direction prior to the effective date of this revocation.

(64 Stat. 816, Pub. Law 429, 82d Cong.; 50 U. S. C. App. Sup. 2154)

This revocation is effective July 28, 1952.

NATIONAL PRODUCTION AUTHORITY,
JOHN B. OLVERSON,
Recording Secretary.

[F. R. Doc. 52-8361; Filed, July 28, 1952; 10:47 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 857]

CALIFORNIA

PARTIAL REVOCATION OF EXECUTIVE ORDER NO. 6361 OF OCTOBER 25, 1933, WITHDRAWING PUBLIC LANDS FOR CLASSIFICATION

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F. R. 4831), it is ordered as follows:

Executive Order No. 6361 of October 25, 1933, withdrawing certain public lands in California for classification and pending determination as to the advisability of including such lands in a national monument, is hereby revoked so far as it affects the following-described land:

SAN BERNARDINO MERIDIAN

T. 2 S., R. 4 E.,
Sec. 32, NW¼.

The area described contains 160 acres.

This revocation is made in furtherance of an exchange under section 8 of the act of June 28, 1934, as amended by section 3 of the act of June 26, 1936 (48 Stat. 1272, 49 Stat. 1976; 43 U. S. C. 315g), by which the offered lands will benefit a Federal land program. This restoration is, therefore, not subject to the provisions contained in the act of

September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284), as amended, granting preference rights to veterans of World War II and others.

MASTIN G. WHITE,
Acting Secretary of the Interior.

JULY 23, 1952.

[F. R. Doc. 52-8266; Filed, July 28, 1952; 8:46 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[7 CFR Part 963]

[Docket Nos. AO-233, AO-233-RO1]

HANDLING OF MILK IN STARK COUNTY, OHIO, MARKETING AREA

NOTICE OF RECOMMENDED DECISION AND OPPORTUNITY TO FILE WRITTEN EXCEPTIONS WITH RESPECT TO PROPOSED MARKETING AGREEMENT AND ORDER

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S .C. 601 et seq.), hereinafter referred to as the "act," and the applicable rules of practice and procedure, as amended, governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), notice is hereby given of the filing with the Hearing Clerk of the recommended decision of the Assistant Administrator, Production and Marketing Administration, United States Department of Agriculture, with respect to a proposed marketing agreement and a proposed order regulating the handling of milk in the Stark County, Ohio, marketing area. Interested parties may file written exceptions to this decision with the Hearing Clerk, United States Department of Agriculture, Washington 25, D. C., not later than the close of business on the 20th day after publication of this decision in the FEDERAL REGISTER. Exceptions should be filed in quadruplicate.

Preliminary statement. The hearing on the record of which the proposed marketing agreement and order were formulated was conducted at Canton, Ohio, on September 17–21, 1951, and on February 11–12, 1952, pursuant to notices thereof which were issued on August 29, 1951 (16 F. R. 8909) and on January 14, 1952 (17 F. R. 580).

The material issues of record related to:

1. Whether the handling of milk in the market is in the current of interstate commerce or directly burdens, obstructs or affects interstate commerce in milk or its products;

2. Whether marketing conditions justify the issuance of a marketing agreement or order; and

3. If an order is issued what its provisions should be with respect to:

(a) The scope of regulation;
(b) The classification of milk;
(c) The level of class prices and the method of determining such prices;
(d) The method to be used in distributing proceeds to producers; and
(e) Administrative provisions.

Findings and conclusions. The following findings and conclusions on the material issues are based upon evidence in the record.

Nature of commerce. The handling of milk produced for sale within the Stark County, Ohio, marketing area and the products thereof is in the current of interstate commerce or directly burdens, obstructs, or affects interstate commerce in milk or milk products.

The production area for the Stark County marketing area overlaps the production areas for the Pittsburgh, Pennsylvania, the Wheeling, West Virginia, and the Cleveland, Ohio, markets to the extent that in the overlapping areas the farms on which milk is produced for the Stark County market are interspersed with farms supplying Pittsburgh, Wheeling and Cleveland. Some shifting of dairy farmers between the Stark County market and these other markets occurs from time to time. The handling of milk in the Cleveland, Ohio, marketing area is regulated by an order issued by the Secretary of Agriculture. Milk for the Stark County marketing area is therefore purchased in direct competition with milk for other markets in which the handling of milk is in the current of interstate commerce.

Milk manufacturing plants at which cheese and condensed milk products and other milk products are manufactured are scattered throughout the production area for the Stark County marketing area. Farms on which milk is produced for the Stark County market are interspersed quite generally with farms supplying milk to these manufacturing plants. At times dairy farmers supplying milk to these manufacturing plants become producers of milk for fluid consumption in the Stark County marketing area. Thus milk for the Stark County marketing area is purchased in direct competition with milk for these manufacturing plants. Some of the products manufactured at these plants actually move in interstate commerce. All of these manufactured products, whether or not they actually move in interstate commerce, are sold in direct competition with similar products that are in interstate commerce, and thus directly burden, obstruct, or affect interstate commerce in such products. Large quantities of the reserve supply of milk for the Stark County market move to these manufacturing plants where such milk is intermingled with other milk at these plants and is manufactured into milk products which move in interstate commerce or directly burden, obstruct, or affect interstate commerce in such products.

Large quantities of milk products which either move in interstate commerce or directly burden, obstruct, or affect interstate commerce in such products are consumed in the Stark County marketing area.

It is concluded that the handling of milk produced for sale within the Stark County, Ohio, marketing area and the products thereof is in the current of interstate commerce or directly burdens, obstructs, or affects interstate commerce in milk or milk products.

Market conditions. The issuance of an order to regulate the handling of milk in the Stark County, Ohio, marketing area, with terms and conditions hereinafter concluded to be appropriate, will tend to effectuate the declared policy of the Agricultural Marketing Agreement Act of 1937, as amended.

A large proportion of the milk produced for the Stark County, Ohio, marketing area is marketed by a cooperative association which service as marketing agent for its members. Milk sold by this cooperative association to milk distributors is priced according to its use so that all milk distributors who obtain their supplies through the cooperative association pay the same price for milk similarly used. Returns for all milk sold in this manner are pooled and a uniform price which is paid to all members of the cooperative association is determined.

A smaller but significant proportion of the milk produced for the Stark County, Ohio, marketing area is sold by the producers directly to the milk distributor. Since the individual producer who serves as his own selling agent usually has little bargaining power, the terms of these sales are often established to a considerable extent by the milk distributor purchasing the milk. Prices paid for milk sold by these individual producers are usually based on the uniform price received by members of the cooperative association without regard to the use of such milk. If a milk distributor who buys his milk in this manner uses a larger proportion of his milk in higher classes than the milk distributors who purchase their milk through the cooperative association, he is buying his milk at some competitive advantage, and unless this advantage is dissipated at some other stage in his operation, he is in a position to increase his sales of Class I milk at the expense of sales by distributors who purchase from the cooperative. The more he captures sales from other distributors the greater his ability to continue this price reduction. This phenomenon is a potential source of market disorder and instability. This potentiality has materialized to some extent in certain portions of the marketing area. To counteract the competitive disadvantage which milk distributors obtaining supplies through the cooperative association have experienced from the so-called "flat price" buyers, the cooperative has sold milk to its own distributors at reduced prices for sale in areas where the effects of "flat price" buying were especially prevalent.

There is some indication that the proportion of the total market requirements which is purchased through the cooperative association is declining. As this proportion declines the incentive for handlers purchasing milk through the cooperative association to seek supplies directly from producers is likely to increase.